

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 26-02

NANCY PRIOR,
Complainant,

v.

**AMOOV GROUP, FREIGHTLEAD LLC, and AIR 7 SEAS TRANSPORT
LOGISTICS, INC.,**
Respondents.

**COMPLAINANT'S OPPOSITION TO RESPONDENT FREIGHTLEAD'S
MOTION TO DISMISS COMPLAINANT'S SECOND AMENDED COMPLAINT**

Complainant Nancy Prior, acting pro se, respectfully submits this Opposition, pursuant to 46 C.F.R. § 502.70(b), to Respondent FreightLead LLC's Motion to Dismiss Complainant's Second Amended Complaint, filed July 28, 2026 (the "Motion").

On June 30, 2026, the Presiding Officer directed Complainant to file a Second Amended Complaint that pleaded, in greater detail, the five elements of a claim under 46 U.S.C. § 41102(c) and 46 C.F.R. § 545.4. The same Order told FreightLead that if it refiled a motion to dismiss and wished to challenge Complainant's allegations with facts from outside the pleadings, it had to cite the applicable rules and authorities for doing so. Complainant then filed her verified Second Amended Complaint on July 13, 2026. It pleads all five elements, with supporting facts, at paragraphs 17 through 21.

FreightLead's Motion to Dismiss should be denied. It states the correct pleading standard and then ignores it. Instead of accepting Complainant's allegations as true, the Motion asks the Presiding Officer to decide a disputed fact, namely whether FreightLead acted as a regulated carrier or merely a "destination agent," and to decide it in FreightLead's favor based on FreightLead's own description of its role. That is the factual attack the June 30 Order said must

rest on rules and authorities, and the Motion offers neither. The Motion also treats cases decided after full evidentiary development as though they set the standard for a pleading. And in its own words the Motion concedes that FreightLead received Complainant's container, stripped her cargo, and moved it to a warehouse, which is the very cargo handling the Motion says her complaint does not adequately allege.

I. LEGAL STANDARD

Complainant does not dispute the standard the Motion recites. On a motion to dismiss for failure to state a claim, “the facts alleged are taken as true, and all reasonable inferences are drawn in the complainant's favor.” *Maier Terminals, LLC v. Port Authority of New York and New Jersey*, FMC Dkt. No. 12-02, 34 S.R.R. 35, 54 (FMC Dec. 18, 2015), quoted in the Motion at 4. Plausibility is not probability; the standard “simply calls for enough fact[s] to raise a reasonable expectation that discovery will reveal evidence” of the alleged violation. *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 556 (2007), quoted in the Motion at 4. As the Motion itself acknowledges, the “choice between two plausible inferences that may be drawn from factual allegations is not a choice to be made by the court on a Rule 12(b)(6) motion.” *Anderson News, LLC v. Am. Media, Inc.*, 680 F.3d 162, 185 (2d Cir. 2012), quoted in the Motion at 4-5. The June 30 Order likewise confirms that the plausibility standard does not require the pleading of specific evidence or extra facts beyond what is needed to make the claim plausible. June 30 Order at 2.

Two consequences of that standard control this Motion. First, the Presiding Officer considers the factual content of the Second Amended Complaint, the documents incorporated by reference, and matters subject to official notice. June 30 Order at 2. FreightLead's competing account of its own role is none of those things. Second, the question at this stage is not whether

Complainant will ultimately prevail, but only whether the Second Amended Complaint permits the reasonable inference that FreightLead is liable for the misconduct alleged.¹ It does.

II. ARGUMENT

A. The Second Amended Complaint pleads each of the five elements identified in the June 30 Order.

The Second Amended Complaint pleads a claim under 46 U.S.C. § 41102(c) and 46 C.F.R. § 545.4 in exactly the structure the June 30 Order prescribed. Paragraphs 6 through 16 set out the factual background in chronological order. Paragraphs 17 through 21 then plead the five elements, each keyed to the interpretive rule and each supported by the facts alleged: that FreightLead is a licensed non-vessel-operating common carrier that participated in the receiving, handling, storing, or delivering of Complainant's property (¶ 17); that the acts and omissions continued throughout the approximately four months from the cargo's arrival at the Port of Miami on or about August 19, 2025 through its release on December 26, 2025 (¶ 18); that the practices related directly to receiving, handling, storing, and delivering that property, including that FreightLead received the container from the terminal, stripped the cargo, and transported it to a warehouse (¶ 19); that the practices were unjust and unreasonable (¶ 20); and that they proximately caused Complainant's documented losses (¶ 21). The Motion addresses each element in turn, and each of its arguments fails on the standard the Motion itself invokes.

¹ The Motion refers in places to “§41104 (c),” see Mot. at 5, 6, while elsewhere correctly citing 46 U.S.C. § 41102(c). Complainant assumes the references to § 41104(c) are intended as references to § 41102(c), the provision pleaded in the Second Amended Complaint, and responds accordingly.

B. Element one: the Motion's “destination agent” theory is a factual defense that cannot be resolved on the pleadings.

The Second Amended Complaint alleges that FreightLead is an FMC-licensed and bonded non-vessel-operating common carrier, FMC License No. 028157NF (¶ 3), a fact FreightLead concedes. Mot. at 7. It further alleges that FreightLead received Complainant's container from the terminal, stripped the cargo, and transported it to a warehouse (¶ 19); that the only shipment document to reach Complainant before her cargo's release was an invoice on FreightLead's own letterhead, from which the bill of lading number and tracking information had been blacked out (¶ 8); that FreightLead held, and on December 23, 2025 transmitted, the vessel, voyage, container, and ocean sea waybill information for the shipment (¶ 7); that FreightLead's staff directed Complainant's representative to Air 7 Seas as the contact concerning the shipment (¶ 10); and that FreightLead provided no shipping documentation (¶ 10). Taken as true, these allegations plausibly establish that FreightLead was performing the United States delivery functions of an international through movement of household goods, in control of the cargo, the documentation, and the shipment information. That is participation in the receiving, handling, storing, or delivering of property by a licensed ocean transportation intermediary, and it permits the reasonable inference that FreightLead acted as a regulated entity with respect to the conduct at issue.

The Motion does not accept these allegations as true. It substitutes its own account: that FreightLead's “role in Ms. Prior's shipment was limited to that of a delivery agent--consignee or destination agent,” Mot. at 7, and that it was “merely the consignee-destination agent,” Mot. at 9. The words “delivery agent,” “consignee,” and “destination agent” appear nowhere in the Second Amended Complaint. They are FreightLead's characterization of its own conduct, offered from

outside the pleading and unsupported by any declaration or evidence, in the very posture the June 30 Order warned against: a factual challenge to Complainant's allegations made without reference to the applicable rules or appropriate authorities. June 30 Order at 3. The Presiding Officer has already identified this precise mismatch. In the June 30 Order, addressing FreightLead's earlier version of the same argument, the Presiding Officer observed that FreightLead's reliance on facts describing its activities to argue it acted as a destination agent “would seem to suggest that it is making a factual attack on the complaint in the nature of a motion for summary judgment,” even though FreightLead “explicitly argues that the Twombly-Iqbal ‘plausibility’ standard should apply” and labels its motion as one to dismiss under Rule 12(b)(6). June 30 Order at 2. The present Motion repeats that mismatch. On a motion under Rule 12(b)(6), FreightLead's factual characterization must be disregarded. And even if the facts alleged could support FreightLead's preferred inference alongside Complainant's, the “choice between two plausible inferences” is not one to be made on this Motion. *Anderson News*, 680 F.3d at 185, quoted in the Motion at 4-5.

FreightLead's own authorities confirm the point. The Motion quotes *Phillip Marciano LLC v. U.S. Cargo Servs., Inc.*, Dkt. No. 25-11 (ALJ Dec. 16, 2025), for the proposition that “[i]t is not the contractual relationship that is the key finding, it is whether or not [the respondent] acted as an NVOCC and assumed responsibility for these shipments from receipt to destination.” Mot. at 9. Yet the Motion's principal factual premise is Complainant's statement that she contracted solely with AMOOV Group and had no contractual relationship with FreightLead (¶ 6), which the Motion twice describes as an admission supporting dismissal. Mot. at 7, 9. By FreightLead's own authority, the absence of contractual privity is not the key finding. Privity is not an element of 46 U.S.C. § 41102(c), which regulates the practices of common carriers,

marine terminal operators, and ocean transportation intermediaries with respect to property, not with respect to their contract counterparties. Complainant's candor about her contract with AMOOV Group negates nothing.

The decisions on which the Motion principally relies were, moreover, decided on full evidentiary records, not on the pleadings. *Bartolini* states the burden of “proving by a preponderance of the evidence,” Mot. at 5, the standard applied after discovery and hearing, not at the pleading stage. The *Marciano* passages the Motion quotes are findings about what the evidence in that proceeding showed, framed in the language of weighing: activities that “do not necessarily mean” an entity acted as an NVOCC, Mot. at 9, are activities from which a factfinder may or may not draw the inference on a developed record. The Commission's own framing in *Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, quoted in the Motion at 8, describes whether and when a respondent “was a regulated entity” with respect to the conduct at issue as “[t]he central question in this case,” that is, a question the Commission resolved by remand for further proceedings, not by dismissal at the threshold. Whether FreightLead acted as an ocean transportation intermediary with respect to this shipment is precisely such a question. At this stage, the Second Amended Complaint need only make the inference reasonable. It does, and element one is sufficiently pleaded.²

C. Element two: a continuous four-month course of conduct is pleaded, and what

FreightLead does normally and customarily is a matter for discovery, not dismissal.

The Second Amended Complaint does not plead a single isolated act. It pleads that from the cargo's arrival at the Port of Miami on or about August 19, 2025 through its release on

² The Second Amended Complaint stands on its own, and Complainant relies on its allegations alone. Complainant notes only that no pleading of record contradicts them: co-Respondent Air 7 Seas' verified Answer to the Second Amended Complaint states that Air 7 Seas “believes the allegations of Complainant to be correct as well as the facts set forth concerning FreightLead LLC” in paragraph 3 of the Second Amended Complaint “and as such admits the facts set forth therein.” Answer to Second Amended Complaint ¶ 3 (Dkt. 42).

December 26, 2025, a period of approximately four months, Respondents continuously withheld Complainant's cargo and shipping documentation, reflecting the manner in which they handled Complainant's shipment throughout that period (§ 18). The withholding was renewed at every point of contact with FreightLead: through the redacted invoice on FreightLead letterhead, from which the bill of lading number and tracking information had been blacked out (§ 8), and through the in-person visit to FreightLead's office on November 13, 2025, at which FreightLead provided no shipping documentation (§ 10). Those allegations plausibly describe conduct occurring on a normal, customary, and continuous basis within the meaning of 46 C.F.R. § 545.4(b). Whether the conduct ultimately satisfies that element is a question for the merits; at the pleading stage, the allegation of a sustained, four-month course of withholding is enough to make it plausible.

The Motion's response is that the Second Amended Complaint “references only one shipment,” Mot. at 9-10-10, citing *Marciano*'s treatment of the evidence concerning three shipments. That argument fails twice over. First, the cited passage of *Marciano* is again a finding on a full evidentiary record about what the proof in that case established; it is not a pleading rule that a complaint concerning one shipment fails as a matter of law, and the Motion cites no authority announcing such a rule. Indeed, *Marciano* itself concerned three shipments and still turned on the sufficiency of the evidence rather than the number of shipments, which confirms that the question is the character of the conduct, not a headcount. Second, whether the conduct alleged reflects how FreightLead normally and customarily handles shipments in its custody is information within FreightLead's exclusive possession. Under the standard the Motion itself quotes, plausibility “simply calls for enough fact[s] to raise a reasonable expectation that discovery will reveal evidence” of the violation. *Twombly*, 550 U.S. at 556, quoted in the Motion at 4. The Second Amended Complaint raises exactly that expectation, and discovery directed to

FreightLead's practices remains pending before the Presiding Officer. Element two is sufficiently pleaded.

D. Element three: the Motion concedes the connection to receiving, handling, storing, and delivering property.

The Second Amended Complaint alleges that the practices related directly to the receiving, handling, storing, and delivering of Complainant's property, and that FreightLead received Complainant's container from the terminal, stripped the cargo, and transported it to a warehouse (¶ 19). The Motion does not dispute this. It repeats it. Describing its own role, FreightLead states that its activities “included receiving Complainant's container from the terminal, and transporting them to a warehouse,” Mot. at 7, and, in its element-three discussion, that it was “stripping the cargo and arranging for drayage to a warehouse,” Mot. at 10. Those are FreightLead's own words, not a recital of Complainant's allegations, and they are the statutory words. Receiving, handling, storing, and delivering property are precisely what FreightLead concedes it did with Complainant's household goods.

The Motion's only argument on this element is that FreightLead's receipt of the shipment “was not part of an NVOCC move” but occurred in its claimed capacity as destination agent. Mot. at 10. That is not an element three argument at all; it merely restates the capacity defense addressed in Part II.B above, and it rests on the same extrinsic characterization that cannot be considered on this Motion. Element three asks whether the practice or regulation relates to or is connected with receiving, handling, storing, or delivering property. 46 C.F.R. § 545.4(c). On FreightLead's own account of its conduct, it does. Element three is not merely pleaded; it is conceded.

E. Element four: the Second Amended Complaint alleges specific unjust and unreasonable conduct by FreightLead.

The Motion asserts that the Second Amended Complaint “does not attribute or allege any unfair or unreasonable conduct or activities relating to the withholding of cargo by Freightlead.” Mot. at 11. That assertion cannot be squared with the pleading. The Second Amended Complaint alleges that FreightLead had possession and control of Complainant's household goods after receiving the container from the terminal (§ 19); that Complainant received no notice of her cargo's arrival and no vessel or shipment information until December 23, 2025, the day after she filed her formal complaint with the Commission, when FreightLead transmitted it (§ 7); that the only document to reach her before then was an invoice on FreightLead letterhead with the bill of lading number, tracking information, and other operational details blacked out (§ 8); that Complainant's attempts to contact FreightLead went unanswered, and that when her representative visited FreightLead's office in person on November 13, 2025, FreightLead provided no shipping documentation and referred him to a handwritten note identifying a contact at Air 7 Seas (§ 10); that her household goods were withheld for approximately four months although Complainant owed no debt to any Respondent (§ 20); that no instruction from AMOOV Group relieved FreightLead of its independent duties under 46 U.S.C. § 41102(c) (§ 20); and that upon the filing of her formal complaint the cargo was released without payment of the demanded sum, establishing that Respondents were able to release the property at all times (§ 20).

Taking those allegations as true and drawing all reasonable inferences in Complainant's favor, a licensed ocean transportation intermediary that holds a consumer's household goods for four months without notice, redacts the very information that would allow the owner to locate her property, answers an in-person visit with a handwritten note, and releases the goods only

after a federal complaint is filed has plausibly failed to observe just and reasonable practices. Whether that conduct was in fact reasonable is a fact-intensive question for the merits; at the pleading stage, element four is amply alleged.

F. Element five: the Motion identifies no independent defect in the pleading of proximate cause.

The Motion's causation argument is entirely derivative. It reasons that because elements one through four are not sufficiently pleaded, proximate cause “is not sufficiently pled” either. Mot. at 11. It identifies no independent deficiency. Because the premise fails for the reasons stated above, the conclusion fails with it.

The Second Amended Complaint pleads causation with specificity. It alleges documented losses flowing directly from the withholding: \$6,080.00 in storage and release charges paid to obtain the goods; \$2,732.00 in moving, delivery, deposit, and gratuity charges; replacement purchases made during the months the goods were withheld, including a mattress and a couch; and the destruction, in storage or handling, of a mattress purchased in Europe for 5,050.00 Euros, itemized to a documented total of \$13,140.32 plus the United States dollar equivalent of 5,050.00 Euros (¶¶ 15, 16, 21). Each of these losses is alleged to result from the withholding of the cargo and documentation in which FreightLead participated. The duties imposed by 46 U.S.C. § 41102(c) run independently to each regulated entity, and the practices of multiple respondents may concurrently and proximately cause a single loss. Nothing more is required of a pleading. Element five is sufficiently alleged.

G. Dismissal with prejudice would be improper in any event.

The Motion asks that the Second Amended Complaint be dismissed with prejudice. Mot. at 12. No basis for that extraordinary relief is offered. The Second Amended Complaint was filed

in the form, by the deadline, and with the content the June 30 Order directed. Amendments to a complaint are permitted at the discretion of the presiding officer. 46 C.F.R. § 502.66(a). If the Presiding Officer were to conclude that any element is insufficiently pleaded, the appropriate course would be leave to amend, not dismissal, and certainly not dismissal with prejudice.

III. CONCLUSION

For the foregoing reasons, Complainant respectfully requests that the Presiding Officer DENY Respondent FreightLead's Motion to Dismiss Complainant's Second Amended Complaint, direct FreightLead to file its answer to the Second Amended Complaint, and grant such other and further relief as the Commission deems just and proper.

Dated: August 10, 2026

Respectfully submitted,

/s/ Nancy Prior

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CERTIFICATE OF SERVICE

I hereby certify that on August 10, 2026, a copy of the foregoing Complainant's Opposition to Respondent FreightLead's Motion to Dismiss Complainant's Second Amended Complaint was served via electronic mail upon the following:

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